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Hearing

Date: 9/24/2026 – 10:00 a.m.

Case No: 26NNCV01150

Trial Date: UNSET

Case Name: ANTHONY PINEDA vs. LTIMINDTREE LIMITED, et al.

TENTATIVE RULING ON MOTION TO COMPEL ARBITRATION

BACKGROUND

Plaintiff – Anthony Pineda, as an Aggrieved Employee, and on behalf of all other Aggrieved Employees under the Labor Code Private Attorneys' General Act of 2004 – filed the instant action on 2/17/2026.

Plaintiff's instant action is brought against Defendants – (1) LTIMINDTREE LIMITED and (2) LARSEN & TOUBRO LIMITED – pursuant to Labor Code Private Attorneys' General Act of 2004 (PAGA) for violations of the Labor Code. Anthony Pineda worked for Defendants from approximately August 2022 through May of 2025.

Moving Defendants – (1) LTM Limited ("LTM" but formerly known as LTIMINDTREE LIMITED) and (2) Larsen Toubro Limited (parent company of LTM) – seek: (1) A stay of this action pursuant to CCP § 1281.4 pending

the outcome of a substantially overlapping arbitration in a federal case, or alternatively, (2) Plaintiff's individual PAGA claim be compelled to arbitration in accordance with the arbitration agreement that he signed, and staying this action pending final resolution of the arbitration.

PROCEDURAL

Moving

Party: Defendants – (1) LTM Limited ("LTM" but formerly known as LTIMINDTREE LIMITED) and (2) Larsen Toubro Limited (parent company of LTM)

Responding

Party: Plaintiff, Anthony Pineda, as an Aggrieved Employee, and on behalf of all other Aggrieved Employees under the Labor Code Private Attorneys' General Act of 2004

Moving

Papers: Notice/Motion; Declaration of Mayana Akram; Declaration of Michelle M. La Mar; Proposed Order

Opposing

Papers: Opposition; Request for Judicial Notice; Declaration of Sarah H. Cohen; Proof of Service

Reply

Papers: Reply

Additional

Papers: Defendants' Notice of Lodging and Request for Judicial Notice [filed 9/18/2026]

TENTATIVE

RULING

Stay

Pursuant to CCP § 1281.4

Defendants

move to stay the instant action (the PAGA Action) pursuant to CCP § 1281.4 under the theory there is substantial overlap between the instant PAGA Action

and the First Action – a federal case in the Central District of California that was recently compelled to arbitration.

In the First Action, Anthony Pineda (Pineda), an individual and on behalf of all others similarly situated filed a class action complaint against LTIMINDTREE LIMITED and LARSEN & TOUBRO INFOTECH LIMITED [more defendants were initially sued but eventually dismissed].

In the First Action, Anthony Pineda's class action complaint alleged nine causes of action – (1) Failure to Pay Overtime Wages; (2) Failure to Pay Minimum Wages; (3) Failure to Provide Meal Periods; (4) Failure to Provide Rest Periods; (5) Wage Statement Violations; (6) Failure to Timely Pay Wages; (7) Failure to Indemnify; (8) Violation of Labor Code § 227.3; and (9) Unfair Competition – stemming from Pineda's employment with defendants. [The parties seemingly concede that the defendants in the First Action are the same as the Defendants in the PAGA Action.]

The Central District of California compelled the First Action to arbitration based on a signed arbitration agreement between Pineda and Defendants.

Defendants in the instant PAGA action move for a stay of the instant action pursuant to CCP § 1281.4 under the theory that the instant action is nearly identical to the First Action.

In relevant part of CCP § 1281.4:

If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

(CCP, § 1281.4.)

“Controversy” means any question arising between parties to an agreement whether the question is one of law or

of fact or both.” (CCP, § 1280(d).)

Here, it appears that a stay in Pineda’s instant PAGA Action is appropriate based on the federal action being compelled to arbitration.

First, a court of competent jurisdiction, here the Central District of California, ordered arbitration of a controversy [any question arising between parties to an agreement whether the question is one of law or of fact or both (CCP § 1280(d))].

In the First Action, the Central District of California [the District Court] required the parties [Pineda and Defendants] to submit to arbitration pursuant to the terms of the arbitration agreement. (Pl. RJN, Ex. C., p. 9.)

Although Plaintiff attempts to argue that the District Court has not yet ordered arbitration, Plaintiff’s argument is unavailing.

Plaintiff attempts to argue that the District Court did not order arbitration because the District Court only ordered arbitration as to the threshold issue of arbitrability; therefore, whether the arbitration agreement between the parties is enforceable has not yet been decided.

The Court does not find Plaintiff’s argument availing because 1281.4 uses the language “ordered arbitration of a controversy,” and controversy is defined as “any question arising between parties to an agreement whether the question is one of law or of fact or both.” (See CCP §§ 1281.4 and 1280(d).)

CCP § 1281.4 does not state that the arbitrator has to have already determined the arbitrability.

Since the District Court required Pineda and Defendants to submit to arbitration pursuant to the terms of the arbitration agreement, Plaintiff’s argument is not availing.

Further, to the extent that Plaintiff

is arguing that arbitration of a controversy has not been ordered because Plaintiff filed a Petition for a Writ of Mandamus And-Or Prohibition with the Ninth Circuit, the Court finds this argument unavailing because Defendants filed a notice of lodging and request for judicial notice on 9/18/2026 that shows that the Ninth Circuit DENIED Plaintiff's writ. [The Court notes that it GRANTS Defendants' request for judicial notice filed on 9/18/2026.]

Plaintiff also argues that the identity of the parties in the First Action and PAGA Action have not been established.

Plaintiff argues that in the First Action, the parties are Pineda (Plaintiff) and Defendants; however, in the PAGA Action, the parties are the State (Plaintiff) and Defendants. Or to phrase it differently, Plaintiff argues that Pineda is not a Plaintiff in the PAGA Action.

Plaintiff cites case like Iskanian v. CLS Transportation Los Angeles, LLC (2014) 59 Cal.4th 348, 384 and Howitson v. Evans Hotels, LLC (2022) 81 Cal.App.5th 475, 488, which explain that a PAGA action is a dispute between an employer and the state, in which the state is always the real party in interest.

The Court does not find the argument – that Plaintiff (Pineda) is not a “party” in the PAGA action under CCP § 1281.4; and only the State is a party in the PAGA action under 1281.4 – because Howitson dealt with defining who was a real party in interest in the context of res judicata (claim preclusion), and Howitson did not deal with the definition of parties with respect to CCP § 1281.4.

Further, in Leenay v. Superior Court, Leenay (plaintiff) brought an action against her former employer under PAGA. (Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 559.) In Leenay, the Court of Appeal analyzed if Leenay's action, that was brought under PAGA, was properly stayed pursuant to 1281.4 when Leenay was not a party to the arbitration agreement that led the trial court to stay her action. (Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 570.)

In Leenay, the Court of Appeal did not simply conclude that Leenay did not agree to arbitration based on the rationale that Leenay was not a party to the arbitration agreement because the

State is the only party bringing a claim in a PAGA action. (Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 570.)

In Leenay, the Court of Appeal explicitly mentioned how Leenay's employer presented no evidence that a court has ordered "Leenay or the other plaintiffs in the coordinated actions to arbitrate a question that arises in those actions." (Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 570.)

Further, the Court notes that under Plaintiff's theory – that the State is the only plaintiff in PAGA actions – then under Plaintiff's theory, when a plaintiff in a PAGA action signs an arbitration agreement, individual PAGA claims could never be compelled to arbitration because the State did not sign the arbitration agreement.

Both parties are aware that individual PAGA claims can be compelled to arbitration. (See Viking River Cruises, Inc. v. Moriana (2022) 596 U.S. 639, 642.)

If Plaintiff was trying to argue that Pineda is not bringing individual PAGA claims in the PAGA Action, and that Pineda is only bringing a representative PAGA claim, then the Court also does not find this argument availing.

Although the complaint in the PAGA Action underlines and bolds "Representative Action" on the first page of the complaint, the PAGA Action is brought by Anthony Pineda, as an Aggrieved Employee, and on behalf of all other Aggrieved Employees under the Labor Code Private Attorneys' General Act of 2004. Further, in Pineda's PAGA Action, Pineda alleges that he is an Aggrieved Employee that suffered Labor Code violations, and that Pineda seeks to recover PAGA civil penalties. (See PAGA Action, Compl., ¶¶ 12-13.)

As explained in Leenay v. Superior Court:

Incorporating the statutory definition of controversy, section 1281.4 means that if (1) a court has ordered arbitration of a question arising between parties to an agreement, and (2) the same question arises between those parties in a pending action, then (3) the court "shall" stay the action (or enter a stay with respect to the arbitrable issue, if the issue is

severable). (§ 1281.4.) In other words, section 1281.4 requires that the pending action involve both the arbitrable question and the parties in the arbitration. The plain language of sections 1281.4 and 1280, subdivision (d) compels this conclusion.

(Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 563.)

“That section [1281.4] applies if a court has ordered arbitration of a question arising between parties to an agreement, and that question and those parties are involved in the present action.” (Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 570.)

Here, the District Court has ordered arbitration of a question arising between parties to an agreement [Pineda and Defendants], and that question, and those parties [Pineda and Defendants] are in the present PAGA Action.

To the extent that the instant PAGA action may technically contain an additional Plaintiff, i.e., the State, Leenay, nor 1281.4 states that all the parties in the pending action have to have been parties in the arbitration.

Or to phrase it differently, the pending action involves both the arbitrable question and the parties in the arbitration [Pineda and Defendants], and the pending action here possibly contains the additional party of the State.

Plaintiff also argues that Defendants fail to establish that the cause of action in the instant PAGA Action and those in the First Action raise the same issues.

Plaintiff argues that PAGA claims differ from claims brought in class actions premised on private causes of action furnished by the Labor Code.

Plaintiff cites to Gavriloglou v. Prime Healthcare Management, Inc. (2022) 83 Cal.App.5th 595, 604 to argue that claims in the First Action are based on the harm to individual employees, whereas the PAGA claims are based on the harm to the state and the general

public.

Here, the Court does not find
Plaintiff's argument availing.

Gavriiloglou did not define "issue" in the context
of CCP § 1281.4.

A single overlapping issue is
sufficient to require imposition of a stay. (Heritage Provider Network, Inc.
v. Superior Court (2008) 158 Cal.App.4th 1146, 1153.)

Under CCP § 1281.4:

If a court of competent jurisdiction, whether in this State
or not, has ordered arbitration of a controversy which is an issue involved in
an action or proceeding pending before a court of this State, the court in
which such action or proceeding is pending shall, upon motion of a party to
such action or proceeding, stay the action or proceeding until an arbitration
is had in accordance with the order to arbitrate or until such earlier time as
the court specifies.

(CCP, § 1281.4.)

" "Controversy" means any question
arising between parties to an agreement whether the question is one of law or
of fact or both." (CCP, § 1280(d).)

"A controversy can be a single *1153
question of law or fact, and a stay shall be issued upon proper motion
if the court has ordered arbitration of a controversy that is also an issue
involved in an action or proceeding pending before it. (Heritage Provider
Network, Inc. v. Superior Court (2008) 158 Cal.App.4th 1146, 1152-1153.)

Here, despite the fact that the two
actions allege different causes of action, there are overlapping issues in the two
actions. (Compare Compl., PAGA Action, ¶ 23, "Plaintiff is informed and
believes, and based thereon alleges, that Defendants knew, or should have
known, that Plaintiff and Aggrieved Employees are entitled to receive wages for
all time worked, including regular, overtime, and double times wages, and that

Plaintiff and Aggrieved Employees were not receiving all wages owed for work that was required to be performed[.]” with La Mar Decl., ¶ 3, Ex. 3 [First Action], ¶ 48, “For four (4) years prior to the filing of the Complaint in this Action through the present, Defendants failed, at times, to accurately track and/or pay for all hours actually worked at their regular rate of pay that is above the minimum wage;; engaged, suffered, or permitted employees to work off the clock, including, without limitation, by requiring Plaintiff and Class Members: to come early to work and leave late for work without being able to clock in for all that time...”.)

Therefore, Defendants’ motion to stay the instant action [PAGA Action] pursuant to CCP § 1281.4 is GRANTED until an arbitration is had in accordance with the order to arbitrate in the First Action from the District Court, or until such earlier time as the court specifies.

Since Defendants’ motion to stay is granted, Defendants’ motion to compel arbitration is not addressed.

Plaintiff’s request for judicial notice is granted.